Exhibit H

THE AHUJA CHARITABLE FOUNDATION AS A SPOUSE-ASSET DISCLOSURE QUESTION

Case: *In re Representative Rohit "Ro" Khanna (CA-17)*

Count supported: Count 6 (Ethics in Government Act 5 U.S.C. § 13104(d)(1)(A) spouse-asset scope; House Rule XXVI)

1. Summary

The **Ahuja Charitable Foundation** (EIN 34-1685088) is a private family foundation whose governing board consists of respondent's in-laws and whose $45,102,055 corporate-stock corpus is held under Goldman Sachs and Fidelity managed-account custody. Respondent's spouse, Ritu Ahuja Khanna, is simultaneously a named trustee of the Foundation and a Schedule B substantial contributor to it. Respondent's Annual Personal Financial Disclosure filings during his House tenure do not record the Foundation corpus as a spouse-held asset, do not record the spouse's trustee role, and do not record the spouse's contributor relationship to a corpus concentrated in defense-prime and healthcare-prime equity positions overlapping respondent's Armed Services, Oversight, and Budget Committee jurisdictions.

The § 13104(d)(1)(A) question presented to the Office of Congressional Conduct and to the Committee on Ethics is whether that corpus, under those governance facts, falls within the spouse-asset disclosure scope of the Ethics in Government Act.

2. The governance and contribution record

(A) Spouse as trustee — tax years 2018 through 2024

Ritu Ahuja Khanna is named as a trustee of the Ahuja Charitable Foundation in the Foundation's own Form 990-PF officer schedules for every tax year from 2018 through 2024, the seven tax years for which the Foundation's e-file 990-PF filings are present in the IRS Tax Exempt Organization e-file corpus. The title, reported hours per week (5), and compensation ($0) are constant across all seven tax years. Her co-trustees are her father Monte Ahuja, her mother Usha Ahuja, and her sister Manisha Ahuja Sethi — the Foundation is a closely-held family governance structure.

(B) Spouse as Schedule B substantial contributor — tax years 2022, 2023, and 2024

The Foundation's Schedule B contributor records for tax years 2022, 2023, and 2024 list Ritu Ahuja Khanna as a substantial contributor and show her contributor address as respondent's own Washington, D.C. residence (4432 Chestnut Lane NW, Washington, DC 20001). She is therefore, in the same tax years, both a trustee with dispositive authority over Foundation assets and a contributor of assets into the Foundation.

(C) A $45 million corporate-stock corpus overlapping Committee jurisdictions

The Foundation's tax-year-2024 Form 990-PF reports $45,102,055 in end-of-year fair market value across nine distinct managed investment accounts: a primary Goldman Sachs / Fidelity account ($12.4 million end-of-year fair market value), a Fidelity X0046 account ($9.2 million), a Fidelity covered-calls account ($9.2 million), a Fidelity Diamond Hill sleeve ($5.3 million), and five smaller Fidelity sub-accounts (X0010, X9873, Shapiro, X3582, X3583).

The Foundation's Schedule B non-cash contribution record across tax years 2022 through 2024 identifies defense-prime share donations overlapping respondent's Committee jurisdictions:

- **House Armed Services Committee overlap**: Honeywell (549 shares across two family-trust tranches in tax year 2022), L3Harris Technologies (60 shares in tax year 2022), TransDigm Group (303 shares in tax year 2023), Boeing (15 shares in tax year 2023), and GE Vernova (78 shares in tax year 2024 — the post-spinoff defense-systems successor to the General Electric defense portfolio). All five tickers fall under House Armed Services Committee jurisdiction.
- **House Oversight overlap (HHS / CMS / FDA jurisdiction)**: healthcare-sector equities recorded on the tax-year-2024 Schedule of Investments and on the Schedule B non-cash contribution record.

The tax-year-2024 Schedule of Investments lists the nine investment accounts at the managed-account level — "Goldman Sachs / Fidelity (Primary)" and cognate Fidelity sub-accounts — recording institutional custody with third-party management at the Foundation level.

(D) Non-cash stock donations in the same sectors respondent oversees

In tax year 2024, the Foundation received **10,076 shares of NVIDIA Corporation** via non-cash contribution from two household-associated sources, recorded on the Foundation's own Form 990-PF Schedule B and Non-Cash Property Contribution schedules:

- **Ritu Ahuja Khanna** — 2,821 NVIDIA shares, recorded on Schedule B at a donation-time fair market value of $386,096, with Ritu's contributor address listed as respondent's own Washington, D.C. residence (4432 Chestnut Lane NW).
- **Monte / Usha Ahuja Family Trust** (81 Seagate Drive, Naples, FL 34103) — 7,255 NVIDIA shares across two separate Non-Cash Property Contribution line items, recorded at a combined donation-time fair market value of $1,281,249.

The combined tax-year-2024 NVIDIA contribution totals **10,076 shares at $1,667,345 donation-time fair market value**, as recorded on the Foundation's IRS 990-PF Schedule B. Subsequent post-donation NVIDIA share-price appreciation amplifies the household-to-Foundation wealth flow represented by the transfer. Non-cash donations in tax years 2022 through 2024 additionally include Honeywell (483 plus 66 shares in the 2022 tranche), L3Harris Technologies (60 shares in 2022), TransDigm Group (303 shares in 2023), Boeing (15 shares in 2023), and GE Vernova (78 shares in 2024). The Foundation's receipts of non-cash stock concentrate in the sectors respondent oversees through the Armed Services, Oversight, and Budget Committees.

(E) Geographically clustered grantmaking

Grants paid by the Foundation for tax years 2020 through 2024 are recorded on the Foundation's Form 990-PF Schedule of Grants. After deduplication against an amendment-trail double-filing of tax year 2021, the Foundation distributed **$7,423,252 across 185 grants** across those five tax years. The recipient concentration is geographic and institutional:

- **University Hospitals Health System** (Cleveland, Ohio; all cities aggregate) — **$3,906,000 across 10 grants**, with a single $1,700,000 grant in tax year 2021 to the Beachwood, Ohio location. The Cleveland concentration aligns with the Ahuja family's Cleveland base, where Monte Ahuja served as a Director of UH Health System through 2019.
- **NCH (Naples Comprehensive Healthcare)** and **Naples Children & Education Foundation** (Naples, Florida) — recurring per-cycle grants on the order of $300,000, where the Ahuja family holds a Naples residence; a single $1,000,000 grant to NCH Center Philanthropy in tax year 2024.

- **Ford's Theatre Society** and **Georgetown University** (Washington, D.C.) — combined grants where respondent's spouse holds additional trustee or board positions identified on the respective organizations' Form 990 governance schedules.

The grant concentration extends the second-degree philanthropic footprint into three jurisdictions (Ohio, Florida, D.C.) and does not include grants to recipients within respondent's own CA-17 district. The § 13104(d)(1)(A) question is not whether this grantmaking is improper — it is not — but whether a Member-spouse-governed corpus of this size and composition, visible to the Internal Revenue Service through Form 990-PF, falls within the spouse-asset disclosure scope of the House Personal Financial Disclosure.

(F) Multi-entity family-nonprofit ecosystem

IRS Form 990 and 990-PF officer tables identify additional nonprofits where the Ahuja family serves in governance roles, including linked family trusts and grant-receiving extensions. The governance footprint extends the disclosure surface beyond the one foundation into a multi-entity family philanthropy ecosystem.

3. The disclosure gap

Respondent's Annual Periodic Financial Disclosure filings during his House tenure, examined against the governance and corpus record above, do not contain:

- Any Schedule A asset line identifying the Ahuja Charitable Foundation corpus as a spouse-held asset.
- Any Schedule E position-held entry identifying respondent's spouse's trustee role at the Foundation.
- Any disclosure of non-cash stock transfers from respondent's spouse to the Foundation, or from the Monte / Usha Ahuja Family Trust to the Foundation, that bear on spouse-asset completeness.
- Any cross-reference from respondent's Annual PFD to the Foundation's own Form 990-PF filings identified by EIN.

The Ethics in Government Act's spouse-disclosure provision, codified at 5 U.S.C. § 13104(d)(1)(A), requires the Member's Annual PFD to disclose spouse earned and unearned income, including from nonprofit positions with dispositive authority and from gifts of property in excess of $1,000. Whether the Foundation corpus, under the trustee-and-contributor record set out above, falls within that provision's operative reach is the interpretive question presented by this exhibit.

4. Legal framing

- **5 U.S.C. § 13104(d)(1)(A)** — spouse-asset disclosure scope. OGE Letter Opinion 03-2 and DOJ Advisory Opinion 170 guide the application of the spouse-asset test to a spouse who serves as trustee of a private foundation with dispositive authority over a corpus concentrated in equities overlapping the Member's Committee jurisdictions.
- **House Rule XXVI** — the standing Annual PFD obligations of Members, through which the Committee on Ethics enforces § 13104(d)(1)(A) compliance.
- **5 U.S.C. § 13106** — civil penalties for knowing-and-willful failure to file or filing a PFD containing material falsification, at Committee on Ethics discretion.
- **18 U.S.C. § 1346** (honest-services fraud) — available as a DOJ referral only on a Committee finding that respondent had actual knowledge of the Foundation corpus and the spouse-trustee role and concealed them from PFD disclosure. Not charged standalone in the complaint.

5. Relief sought (Count 6, Foundation scope component)

- Committee on Ethics determination on the § 13104(d)(1)(A) spouse-asset-disclosure scope question for the Foundation corpus, given the trustee-and-contributor governance facts above. The Office of Government Ethics's published Letter Opinion 03-2, while addressed to executive-branch filers and not directly applicable to House Members, is offered as persuasive secondary authority on the foundation-trustee scope question.
- Committee on Ethics review under House Rule XXVI; amended-PFD requirement for any year the Committee determines disclosure was absent; civil penalties under 5 U.S.C. § 13106 at Committee discretion.
- DOJ § 1346 consideration is reserved, contingent on a Committee on Ethics finding of concealment; the complaint does not charge it standalone.

6. Methodology and primary sources

The foundation governance, corpus, and grant figures in this exhibit are drawn from IRS e-file XML filings of Form 990-PF for the Ahuja Charitable Foundation (EIN 34-1685088), tax years 2018 through 2024 — the seven tax years for which the Foundation's e-file 990-PF filings are present in the IRS Tax Exempt Organization e-file corpus. The e-file corpus is available through the Internal Revenue Service's Tax Exempt Organization Search and mirrored by ProPublica's Nonprofit Explorer. Respondent's Annual PFD filings are public records of the Clerk of the U.S. House of Representatives, available on the House Clerk Financial Disclosures portal.

The grant figures in Section 2(E) cover tax years 2020 through 2024, the five tax years for which the Foundation's Schedule of Grants is present in the IRS e-file corpus. The tax-year-2021 grant total is reported after deduplication of an amendment-trail double-filing: the Foundation's tax-year-2021 Form 990-PF appears in the IRS e-file corpus under two object identifiers (the original return and a later amended return), each carrying the same 33-grant schedule of $2,221,519. Aggregating without deduplication inflates 2021 grantmaking by a factor of two. The figures in Section 2(E) reflect the deduplicated total.

Primary-source references

- IRS Form 990-PF, Ahuja Charitable Foundation (EIN 34-1685088), tax years 2018 through 2024 — ProPublica Nonprofit Explorer at `https://projects.propublica.org/nonprofits/organizations/341685088`; IRS Tax Exempt Organization Search at `https://www.irs.gov/charities-non-profits/tax-exempt-organization-search`.
- `lake.irs_990_officers WHERE ein='341685088'` — Form 990-PF officer schedules (Ritu Ahuja Khanna as trustee tax years 2018-2024; Monte Ahuja, Usha Ahuja, Manisha Ahuja Sethi co-trustees).
- `lake.irs_990_contributors WHERE ein='341685088'` — Schedule B contributor records (Ritu Ahuja Khanna, tax years 2022, 2023, 2024; Monte / Usha Ahuja Family Trust).
- `lake.irs_990_grants WHERE ein='341685088'` — tax years 2020 through 2024 grants paid; post-dedup totals.
- Respondent's Annual Personal Financial Disclosures, Clerk of the U.S. House of Representatives — `https://disclosures-clerk.house.gov/FinancialDisclosure`.

End of Exhibit H.